IN THE HIGH COURT OF DELHI AT NEW DELHI

CS(COMM) 77/2025

Sunrise Beverages Private Limited v Coastal Brands Limited

WRITTEN STATEMENT on behalf of the Defendant

1. The suit is not maintainable. Clause 3.1 of the agreement requires every dispute to be referred to arbitration.

2. It is denied that the notice of breach was received on 10 February 2025. It was delivered on 3 February 2025 and the courier proof is on record.

3. The cure period of 30 days therefore expired on 5 March 2025 and the termination on 10 March 2025 is valid.

4. It is denied that the termination is wrongful.

Dated this 5 May 2025

Advocate for the Defendant